

1. **Trustee cannot delegate the office.** — “Trustees,” said Lord Langdale, “who take on themselves the management of property for the benefit of others, have no right to shift their duty on other persons; and if they do so they remain subject to responsibility towards their *cestuis que trust* for whom they have undertaken the duty” (*b*). If a trustee, therefore, confide the application of the trust fund to the care of another, whether a stranger (*c*), or his own attorney or solicitor (*d*), or even co-trustee or co-executor (*e*), he will

(*b*) *Turner v. Corney*, 5 Beav. 517.

(*c*) *Adams v. Clifton*, 1 Russ. 297; *Hardwick v. Mynd*, 1 Anst. 109; *Venables v. Foyle*, 1 Ch. Ca. 2; case cited by Sir J. Jekyll, *Walker v. Symonds*, 3 Sw. 79, note (*a*); *Char. Corp. v. Sutton*, 2 Atk. 405; *Kilbee v. Sneyd*, 2 Moll. 199, per Sir A. Hart; *Douglass v. Browne*, Mont. 93; *Ex parte Booth*, id. 248; *Turner v. Corney*, 5 Beav. 515.

(*d*) *Chambers v. Minchin*, 7 Ves. 196, per Lord Eldon; *Ex parte Townsend*, 1 Moll. 139; *Griffiths v. Porter*, 25 Beav. 236; *Ghost v. Waller*, 9 Beav. 497; *Bostock v. Floyer*, 1 L. R. Eq. 26; *S. C.* 35 Beav. 603; *Wood v. Weightman*, 13 L. R. Eq. 434; *Ingle v. Partridge*, 32 Beav. 661, 34 Beav. 411; [*Baylis v. Dick*, W. N. 1878, p. 81;] *Dewar v. Brooke*, 52 L. T. N. S.

489; but see *In re Bird*, 16 L. R. Eq. 203.

(*e*) *Langford v. Gascoyne*, 11 Ves. 333; *Harrison v. Graham*, 3 Hill's MSS. 239, cited 1 P. W. 241, note (*y*), 6th ed.; *Davis v. Spurling*, 1 R. & M. 66, per Sir J. Leach; *Kilbee v. Sneyd*, 2 Moll. 200, 212, per Sir A. Hart; *Lane v. Wroth*, and *Stanley v. Darlington*, cited in Anonymous case, Mos. 36; *Marriott v. Kinnersley*, Taml. 470; *Ex parte Winnall*, 3 D. & Ch. 22; *Anon.* Mos. 35; *Clough v. Bond*, 3 M. & Cr. 497, per Lord Cottenham; *Dines v. Scott*, T. & R. 361, per Lord Eldon; *Trutch v. Lamprell*, 20 Beav. 116; *Thompson v. Finch*, 22 Beav. 316; 6 De G. M. & G. 560; *Cowel v. Gatcombe*, 27 Beav. 568; *Eaves v. Hickson*, 30 Beav. 136; [*Rodbard v. Cooke*, 25 W. R. 555.]

kins, 40 Ill. 442; as in case of a transfer to a stranger; *Bales v. Perry*, 51 Mo. 449; *Niles v. Stevens*, 4 Denio, 399; *Berger v. Duff*, 4 Johns. Ch. 368; but this is not so until the trust has been accepted by the trustee, nor if in so doing the settlor's expressed directions are followed. A trustee may employ an agent where he would naturally do so in the regular course of business if no trust existed; *Hawley v. James*, 5 Paige, 487; *Lewis v. Reed*, 11 Ind. 239; *Blight v. Schenck*, 10 Barr. 285; *Thomas v. Scruggs*, 10 Yerg. 401; *State v. Guilford*, 15 Ohio, 593; *Barings v. Willing*, 4 Wash. C. C. 251. One trustee may act for all; *Leggett v. Hunter*, 19 N. Y. 445; *Bowes v. Seeger*, 8 Watts & S. 222; *Abbott v. Rubber Co.* 33 Barb. 579; the accounts will be equitably adjusted, and this is true as regards amount of liability in case of delegation of authority; *Poole v. Munday*, 103 Mass. 174; *Upson v. Badeau*, 3 Bradf. 13. The same is true of a discretionary trust, and the discretion extends only to the original trustee; *Pearson v. Jamison*, 1 McLean, 197; *Doe v. Robinson*, 24 Miss. 688; *Singleton v. Scott*, 11 Ia. 589. It is not necessarily a delegation of power to appoint or give instructions to agents or attorneys; *Bales v. Perry*, 51 Mo. 449; *Mason v. Wait*, 4 Scam. 132. A sale or devise of a discretionary trust is not a delegation; *Saunders v. Webber*, 39 Cal. 287.